

The court OVERRULES GM’s demurrer to the FAC’s fifth cause of action. GM argues that Alcantar “cannot invoke the delayed discovery rule because [Alcantar] affirmatively states that the alleged ‘[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period . . .’” (MPA, p. 13:6-8, citing FAC, ¶ 20.) According to GM, Alcantar fails to plead facts showing that she was not negligent in failing to make “the discovery sooner.” (*Id.* at p. 13:6-14, citing *Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 437; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137.) The question of whether Alcantar was “not negligent” in her discovery is a factual issue that cannot be decided on a demurrer—it does not present a deficiency on the face of the pleading. Moreover, Alcantar has alleged a history of repair attempts in which she presented the Subject Vehicle to GM’s authorized repair facility, and these facilities represented that they had repaired the Subject Vehicle. (See FAC, ¶¶ 11-12.) As to GM’s argument regarding the sufficiency of the allegations supporting the FAC’s fifth cause of action, the FAC alleges that Alcantar entered into a warranty contract with GM, GM advertised to Alcantar regarding the Subject Vehicle, the Subject Vehicle exhibited defects, GM knew of these defects and failed to disclose them, GM intended to defraud Alcantar, and Alcantar would not have purchased the Subject Vehicle had she known of these defects. (FAC, ¶¶ 6-13, 71-100.) These allegations are sufficient. (See *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 (*Dhital*).) Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal Rules of Court, rule 8.1115(e)(2).) The court is also not convinced by GM’s economic loss rule argument. (See *Dhital, supra*, 84 Cal.App.5th at pp. 833, 837-841.)

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Case Name: *Monica Alcantar v. General Motors LLC*

Case No.: 25CV461594

This is a lemon law action. Defendant General Motors LLC (“GM”) demurs to the first through fifth causes of action alleged in the first amended complaint (“FAC”) filed by plaintiff Monica Alcantar (“Alcantar”).

The court OVERRULES GM’s demurrer to the FAC’s first through third causes of action. GM argues that these causes of action are barred by the statute of repose and statute of limitations outlined in Code of Civil Procedure sections 871.20 and 871.21. (Memorandum of Points and Authorities in Support of GM’s Demurrer (“MPA”), pp. 10:6-11:27.) First, Code of Civil Procedure section 871.20 plainly states that it applies to a violation of section 1793.2, subdivisions (b) or (d), not subdivision (a)(3)—the FAC’s third cause of action alleges liability under Code of Civil section 1793.2, subdivision (a)(3). (Code Civ. Proc. § 871.20, subd. (a).) Moreover, in order for GM to rely on sections 871.20 or 871.21, it needs to have “elect[ed] to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles . . .” (Code Civ. Proc. § 871.29, subds. (a), (b); see also Code Civ. Proc. § 871.30, subd. (c).) GM has not demonstrated that it has met this requirement—the FAC does not allege that GM made any such election, GM does not argue or demonstrate that it made such an election in its memorandum of points and authorities in support of demurrer, and GM does not request that the court judicially notice any election. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1315-1316 [“In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows merely that the action may be barred.”], internal citations and quotation marks omitted.) Instead, GM states in its reply, for the first time, that it complied with Code of Civil Procedure section 871.21’s opt-in provision and directs the court to a website link. (GM’s Reply in Support of Demurrer, p. 3:1-11.) A court cannot rely on this type of extrinsic evidence in ruling on a demurrer. (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 597, fn. 1.)

The court OVERRULES GM’s demurrer to the FAC’s fourth cause of action. GM argues that the “delayed discovery does not apply to implied warranty claims.” (MPA, p. 12:15-21, citing *Nguyen v. Nissan North America, Inc.* (N.D. Cal. 2020) 487 F.Supp.3d 845, 854, fn. 3.) GM is incorrect that the delayed discovery doctrine never applies to implied warranty claims. (See *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309-1311 [stating that “by giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery . . . when a buyer has accepted a tender of goods, he or she must, within a reasonable time after he or she discovers or should have discovered any breach, notify the seller of breach or be barred from any remedy . . . [i]f the Legislature intended the duration provision to impose a deadline for consumers to give notice of defects under the Song-Beverly Act, it could have easily done so . . . [i]t did not . . . we interpret the duration provision as providing the implied warranties under the Song-Beverly Act with a limited prospective existence beyond the date of delivery.”]; see also *Yeager v. Ford Motor Co.* (N.D. Cal. Jan. 8, 2020) 2020 U.S. Dist. LEXIS 3805, at *7 [stating that “[t]he issue is whether a purchaser can sue more than five years after the purchase on the theory that a latent defect lurked within the vehicle not reasonably discoverable by him until after the year ran such that the four-year limitations period began only upon discovery . . . [t]he answer is yes. The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale. [Citation]”]; see also *Tanner v. Ford Motor Co.* (N.D. Cal. 2019) 424 F.Supp.3d 666, 671-672 [stating that “the statute of limitations for implied warranty claims does not run at tender . . . [i]t runs at discovery . . . the discovery rule applies to implied warranty claims. [Citation.]”].)

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discovery sooner.” (*Id.* at p. 13:6-14, citing *Hobart v. Hobart Estate Co.* (1945) 26 Cal.2d 412, 437; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137.) The question of whether Alcantar was “not negligent” in her discovery is a factual issue that cannot be decided on a demurrer—it does not present a deficiency on the face of the pleading. Moreover, Alcantar has alleged a history of repair attempts in which she presented the 2015 Chevrolet Cruze she purchased (the “Subject Vehicle”) to GM’s authorized repair facility, and these facilities represented that they had repaired the Subject Vehicle. (See FAC, ¶¶ 11-12.) As to GM’s argument regarding the sufficiency of the allegations supporting the FAC’s fifth cause of action, the FAC alleges that Alcantar entered into a warranty contract with GM, GM advertised to Alcantar regarding the Subject Vehicle, the Subject Vehicle exhibit defects, GM knew of these defects and failed to disclose them, GM intended to defraud Alcantar, and Alcantar would not have purchased the Subject Vehicle had she known of these defects. (FAC, ¶¶ 6-13, 71-100.) These allegations are sufficient. (See *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 (*Dhital*).) Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal Rules of Court, rule 8.1115(e)(2).) The court is also not convinced by GM’s economic loss rule argument. (See *Dhital, supra*, 84 Cal.App.5th at pp. 833, 837-841.)

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Case Name: *Saigon Central Post, Inc. v. Brink’s, Inc.*

Case No.: 25CV471826

Defendant Brinks Incorporated’s (“Brinks” or “Defendant”) request for judicial notice of the November 30, 2016 service contract and the contract endorsements pursuant to Evidence Code section 452, subdivision (h) is DENIED. (See *Gould v. Maryland Sound Industries, Inc.* (1995) 31 Cal.App.4th 1137, 1145 (stating that “the existence of a contract between private parties cannot be established by judicial notice under Evidence Code section 452, subdivision